

BCE-M002
SEMESTER EXAMINATION-MAY2023
CLASS: B.TECH SEMESTER: -VI SEM
INTELLECTUAL PROPERTY RIGHTS

Time: 3 hour

Max. Marks: 70

Note: Question Paper is divided into two sections: **A and B**. Attempt both the sections as per given instructions.

SECTION-A (SHORT ANSWER TYPE QUESTIONS)

Instructions: Answer any *five* questions in about 150 words each. Each question carries six marks.
(5 X 6 = 30 Marks)

Question-1: An invention may satisfy the condition of novelty, inventiveness and usefulness but it may not qualify for a patent. Discuss. Who checks the novelty features of the invention?

Question-2: Sanjay is a university student and is confident in his ability to make sound moral judgments. Which perspectives would Gilligan expect Sanjay to use? Discuss.

Question-3: Discuss the concept of patenting of software and copyright protection of software programmes.

Question-4: Classify the following as likely copyrightable or not copyrightable:

- a) a live broadcast of a FM program;
- b) a speech written for the secretary of defence
- c) a new method of calculating the value of business

Question-5: 6 Explain about unfair competition? Write its types?

Question-6: Why one should access the patent literature? What are the various on-line databases available that provide access to patent documents while conducting patent search?

Question-7: Illustrate the importance of IP audit in different business organisation?

Question-8: What is the Paris Convention? What are the principal features of the Paris Convention?

Question-9: Explain briefly about false advertising with an example and how it affects the IPR.

Question-10: What is valuation? Why is valuation of intellectual property important?

SECTION-B (LONG ANSWER TYPE QUESTIONS)

Instructions: Answer any *four* questions in detail. Each question carries 10 marks.

(4 X 10 = 40 Marks)

Question-1: “ *Protecting the created intellectuality is a challenge now a days, Because of the cloning of one’s idea is easier than the new creation*”- How this statement is realistic in practicing business?

Question-2: Explain the need and scope areas for the effective implementation of Intellectual Properties (IP) and the associated rights in India.

Question-3: Analyze if two artists each paint an oil painting of Dudhsagar Falls, which painting receives copyrights protection? Discuss?

Question-4: Narrate how selecting, evaluating and registration of trademarks take place.

Question-5: Define trade secret. How long does a trade secret last? What are all the items can be considered as a trade secret? How it can be safeguarded from others.

Question-6: Write about the confidentiality agreement between Employer and Employee.

Question-7: What are the types of cybercrimes committed in e-commerce and what are the measures to be taken to prevent the cybercrimes in e-commerce and enhance ecommerce?

Question-8: What is infringement of trade mark? Explain the remedies available for infringement.